

25STCV08532 25STCV08532

County: los-angeles

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Case Number: 25STCV08532 Hearing Date: September 10, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: September 10, 2026

CASE NUMBER: 25STCV08532

CASE NAME: Solorio, et al. v. General Motors, LLC

MOVING PARTY: Defendant General Motors, LLC

OPPOSING PARTY: Plaintiffs Arturo Zavala Solorio,
Silvia Becerra Zavala, and Sylvia Zavala

PROCEEDING: COMPLIANCE PURSUANT TO

C.C.P. §

871.26

RULING SUMMARY: Defendant's motion for compliance pursuant to Code of Civil Procedure section 871.26 is GRANTED in part. The depositions of Plaintiffs that have not yet been taken and completed shall be scheduled for a date available to Defendant's counsel within 30 days of this Ruling. The court imposes sanctions of \$1,500.00 on Plaintiffs' counsel. Defendant to give notice. Plaintiffs' counsel shall pay the sanctions to Defendant's counsel by September 21, 2026.

Background

This is a Song-Beverly Consumer Warranty Act case. Plaintiffs Arturo Zavala Solorio, Silvia Becerra Zavala, and Sylvia Zavala (collectively, "Plaintiffs") allege that their 2024 Chevrolet Silverado 1500 suffers from defects and nonconformities to warranty, including but not limited to transmission, engine, and electrical defects.

On March 24, 2025, Plaintiffs filed a complaint against defendant General Motors, LLC ("Defendant") and Does 1 through 10, alleging causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On June 26, 2026, Defendant filed the motion for compliance pursuant to Code of Civil Procedure section 871.26 and a request for sanctions. Plaintiffs oppose.

compliance
pursuant to code of civil procedure section 871.26

I. Legal Standard

Effective January 1, 2025, in any action seeking restitution or replacement of a motor vehicle under section 871.20, the parties must follow these rules: within 120 days after an answer or other responsive pleading is filed, each party shall have the right to conduct initial depositions of the plaintiff. (Code Civ. Proc., § 871.26, subdivision (c)(1).) The Court must impose sanctions for failure to comply with section 871.26, absent good cause. (Code Civ. Proc., § 871.26, subd. (j).)

The California Legislature enacted section 871.20, et seq., which added requirements for certain lemon law actions. (Code Civ. Proc., § 871.20, subd. (a) ["Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the

applicable express warranty”]; subd. (b) [“This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle”].)

II. Discussion

A.

Compel Deposition

Defendant moves for an order compelling Plaintiffs to appear for initial deposition, as required under Code of Civil Procedure section 871.26, subdivision (c)(1). Section 871.26, subdivision (c)(1), entitles Defendant to conduct an initial deposition of Plaintiffs within 120 days after filing any responsive pleading. Defendant filed a demurrer on July 17, 2025. Therefore, Defendant was entitled to request and conduct Plaintiffs’ initial deposition at any point prior to November 14, 2025.

Defendant sent a meet and confer letter on July 2, 2025, to Plaintiffs’ attorney, outlining that this action is subject to Assembly Bill 1755’s provisions and indicating that Defendant was issuing a notice for Plaintiffs to appear for deposition. (Stark Decl., ¶ 4, Ex. A.) On July 17, 2025, Defendant emailed a Notice of Deposition (“Notice”) for Plaintiffs to appear for deposition on August 13, 2025. (Id., ¶ 5, Ex. B.) On August 6, Plaintiffs’ counsel objected to the Notice on the grounds that the deposition was unilaterally noticed, but indicated a willingness to meet and confer to reschedule for a mutually convenient date. (Id., ¶ 6, Ex.

C.) Defendant sent follow-up emails requesting availability in November 2025 and February 2026 but did not receive a response. (Id., ¶¶ 7-8, Exs. D-E.)

Plaintiffs argue that the motion is moot because since the motion’s filing, the parties met and conferred and Defendant served an Amended Notice of Deposition setting Plaintiff Arturo Zavala Solorio’s deposition for August 12, 2026. (Opp., at p. 1; Smith Decl., ¶¶ 6-7.) The deposition was conducted. (Id.)

While Mr. Solorio’s deposition has been taken, and Plaintiffs’ counsel states that the remaining two Plaintiffs are ready and willing to complete their depositions, their availability has not been

determined, and the parties have not set a deposition as of the opposition's filing. (Smith Decl., ¶ 7.)

Plaintiffs also offer no explanation for their failure to proactively offer dates following the initial objection or to reply to Defendant's November 2025 and February 2026 emails requesting dates.

Defendant made diligent attempts to complete Plaintiffs' initial deposition during the 120-day period by serving the Notice and attempting to engage in meet and confer efforts. Plaintiffs failed to make diligent efforts to comply with section 871.26 requirements and produce Plaintiffs for deposition.

As Silvia Becerra Zavala's and Sylvia Zavala's depositions have still yet to occur, despite Defendant's efforts to exercise their discovery rights, the Court grants the motion to compel Silvia Becerra Zavala's and Sylvia Zavala's initial depositions.

B.

Sanctions

Defendant requests sanctions of \$1,500.00 against Plaintiffs' counsel, pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2). Section 871.26, subdivision (j)(2), provides that, unless the party failing to comply shows good cause, the court shall impose \$1,500.00 in sanctions upon plaintiff's counsel for failure to comply with deposition requirements.

Plaintiffs argue that sanctions should not be imposed because they have shown good cause: According to Plaintiffs, "[a] party who objects to a unilaterally chosen date, offers to reschedule, and then agrees on a date has not engaged in the kind of unjustified noncompliance the statute is designed to deter." (Opp., at p.4.)

The Court finds that no evidence or explanation is provided as to why Plaintiffs' counsel failed to provide any dates until after this motion was filed, more than a year after the initial time period, despite Defendant's attempts to meet and confer. Even in the email exchange solidifying Mr. Solorio's deposition, Plaintiffs' counsel still did not offer dates and times for Sylvia Becerra Zavala. (Smith Decl., Ex. A.)

Plaintiffs' counsel has not shown good cause for failure to comply. Accordingly, the Court imposes sanctions of \$1,500.00 on Plaintiffs' counsel.

The Court denies Plaintiffs' request for sanctions under Code of Civil Procedure section 2023.010, subdivision (h), because the court granted Defendant's motion in part.

Conclusion

Defendant's motion for compliance pursuant to Code of Civil Procedure section 871.26 is GRANTED in part. The depositions of Plaintiffs that have not yet been taken and completed shall be scheduled for a date available to Defendant's counsel within 30 days of this Ruling. The court imposes sanctions of \$1,500.00 on Plaintiffs' counsel. Defendant to give notice. Plaintiffs' counsel shall pay the sanctions to Defendant's counsel by September 21, 2026.

Date: September 10, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court